

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 7/24/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
8	30-2026-01581933 Gonzalez Hernandez vs. Saucedo	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 10). When a party files a demurrer, the Court looks at the facial sufficiency of the complaint and attachments only and cannot consider extrinsic evidence. The Court must assume that the statements contained within the Complaint are true in determining facial sufficiency. As such, the Court OVERRULES the Defendants' demurrer. Based on only the information contained within the complaint and its attachments, there is sufficient basis to state a cause of action for an unlawful detainer. The issues raised by the Defendants in the Demurrer regarding the payments of rent and the possible overstatement of rent in the Notice to Pay Rent or Quit are factual determinations that will be addressed at trial. The Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
9	30-2026-01582683	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 14).

	Lincoln Apartments JV LLC vs. Ordonez	The Court OVERRULES the Demurrer. The Defendant is ordered to file an Answer within 5 business days. The Plaintiff is ordered to serve notice of the Court's ruling.
10	30-2026-01543587 KLR Partners, LLC vs. Peter Pan Novelty Company	The Court has read and considered Plaintiff's Declaration Re: Non-Compliance with Stipulation for Entry of Judgment and Request for Entry of Judgment Thereon, together with all supporting filings, as well as Defendant's Opposition (ROA 62) and the related filings submitted in opposition. At the July 8, 2026, hearing, Plaintiff requested that this matter be converted to a general civil action pursuant to Civil Code section 1952.3 in light of the Court's tentative ruling. Because the issue arose from a Stipulation for Entry of Judgment in an unlawful detainer action, the Court ordered supplemental briefing on whether conversion under Civil Code section 1952.3 was appropriate. The Court has reviewed and considered Plaintiff's Supplemental Brief Re Amendment of Complaint Pursuant to Civil Code section 1952.3 (ROA 92), Defendant Peter Pan Novelty Company's Supplemental Brief Re Effects of Civil Code section 1952.3 on the Parties' Stipulation and Opposition to Plaintiff's Request for Leave to Amend (ROA 95), and Plaintiff's Oral Argument Brief and Reply to Defendant's Supplemental Brief (ROA 97). The principal purpose of an unlawful detainer action is to determine the right to possession of real property. Code of Civil Procedure section 1179, subdivision (a), affords unlawful detainer proceedings statutory calendar preference because of that limited purpose. Once possession has been restored, however, the justification for expedited unlawful detainer proceedings no longer exists, and any remaining disputes are generally resolved through ordinary civil procedures. Separately, Civil Code section 1950.7 authorizes a commercial landlord, upon termination of the tenancy, to apply a tenant's security deposit toward unpaid rent, the cost of repairing damage beyond ordinary wear and tear, and other amounts authorized by statute. The parties do not dispute that Defendants surrendered possession of the premises or that Defendants timely paid the agreed amount of \$65,865.00 as required under the Stipulation for Entry of Judgment Upon Default (ROA 46). The only dispute is whether Defendants returned the premises in the condition required by the Stipulation—namely, "clean and undamaged condition, ordinary wear and tear expected." As Defendant correctly observes in its supplemental brief (ROA 95), Plaintiff's alleged repair costs were not included in its request for entry of judgment under the Stipulation. Instead, paragraph 11 of the Stipulation expressly reserved Plaintiff's right to pursue any claims for property damage separately. The Court concludes that the alleged failure to return the premises in the required condition does not constitute a material breach of the Stipulation

		warranting enforcement of its default provisions. Rather, Defendants substantially complied with the material terms of the Stipulation. The principal purpose of the agreement was to resolve the parties' unlawful detainer dispute by restoring possession of the premises to Plaintiff and providing for payment of the agreed monetary amount. (ROA 46.) To the extent Plaintiff contends that Defendants caused damage beyond ordinary wear and tear, Plaintiff has adequate legal remedies independent of the unlawful detainer proceeding. Those remedies include applying the security deposit as authorized by Civil Code section 1950.7 and pursuing a separate civil action to recover any damages otherwise permitted by law. Plaintiff cites no authority addressing the circumstances presented here. Instead, Plaintiff principally relies upon the legislative purpose underlying Civil Code section 1952.3. That argument does not resolve the issue before the Court. The question is not whether Civil Code section 1952.3 generally authorizes conversion of an action, but whether, after entering into a Stipulation providing for dismissal upon Defendants' performance, Plaintiff may avoid dismissal by asserting that one condition of the Stipulation was not satisfied and then convert the unlawful detainer action into a general civil action. Resolution of that issue turns upon the terms of the parties' Stipulation and ordinary principles governing the enforcement of stipulated agreements. Civil Code section 1952.3 does not alter this analysis. Even assuming the statute authorizes conversion of an unlawful detainer action to a general civil action under appropriate circumstances, nothing in the statute authorizes a party to avoid or modify the terms of a negotiated stipulation after the material obligations of that stipulation have been substantially performed. The parties elected to resolve the unlawful detainer action through a Stipulation that restored possession to Plaintiff, required payment of an agreed sum, and expressly preserved Plaintiff's ability to pursue separate claims for property damage. Having obtained the principal benefits of that agreement and expressly reserved its remedies for alleged damage to the premises, Plaintiff cannot invoke Civil Code section 1952.3 to expand the scope of this unlawful detainer proceeding into a general civil action based upon the same alleged damages. To hold otherwise would effectively rewrite the parties' agreement and undermine the finality of stipulated resolutions in unlawful detainer proceedings. Having retained jurisdiction to enforce the Stipulation, the Court finds that Defendants substantially complied with its material terms. Plaintiff invoked the Court's jurisdiction by seeking enforcement of the default provisions based upon the alleged failure to return the premises in the required condition while simultaneously reserving its right to pursue any property damage claims in a separate action. Under these circumstances, the Court declines to enforce the default provisions of the Stipulation. Accordingly, Plaintiff's request for an order finding that Defendants failed to comply with the Stipulation and for entry of judgment thereon is DENIED. Because Defendants substantially complied with the material terms of the
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		Stipulation, the Court enforces the parties' agreement by ordering this unlawful detainer action dismissed. The Court makes no factual findings regarding the existence or extent of any alleged property damage. Nothing in this ruling precludes either party from pursuing any claims or defenses relating to alleged damage to the premises in a separate civil action. The Court further finds that there is no prevailing party with respect to the motion presently before the Court. Accordingly, neither party is entitled to recover attorney's fees incurred in bringing or opposing the motion.
12	30-2026-01562015 Bendy vs. Simpson	Due to Court congestion, on its own motion, the Court is continuing this matter to July 29, 2026 at 8:30 AM in Department C61.
13	30-2026-01564845 BRE-FMCA, LLC vs. Rios	This matter is off calendar. The Motion to Dismiss was ruled on 5/11/2026 in ROA 23.
14	30-2026-01574957 Malki vs. Espinoza	The Court has read and considered the Defendants' Motion for Judgment on the Pleadings; Pursuant to CCP 438 and Subsections (ROA 24) and Plaintiff's Opposition (ROA 42). A motion for judgment on the pleadings tests the legal sufficiency of the complaint based solely on the factual allegations pleaded and matters subject to judicial notice, without consideration of extrinsic evidence. (See <i>Heffesse v. Guevara</i> (2025) 108 Cal.App.5th Supp. 74, 82.) Here, Defendants seek judgment on the pleadings on two grounds: (1) the notice of termination incorrectly identifies the subject property's city as La Habra, when the property is located in Anaheim; and (2) the notice fails to identify the landlord by name or provide the landlord's contact information. The second argument lacks merit. California Civil Code section 1946.2, subdivision (b)(2)(D), governs the notice requirements for a no-fault just-cause termination based on an intent to demolish or substantially remodel the residential property. Nothing in that statute requires a notice of termination to include the landlord's name, address, telephone number, or email address. By contrast, the Legislature expressly required such information in Code of Civil Procedure section 1161, subdivision (2), which mandates that certain notices identify the person to whom rent is payable and provide that person's name, telephone number, address, and, where payment is to be made in person, the usual days and hours of availability. The omission of comparable language from Civil Code section 1946.2 demonstrates that the Legislature did not intend to impose those requirements on a notice issued under that statute. With respect to the erroneous identification of the property's city, the Court recognizes that such an error could, in some circumstances, be materially prejudicial because it may affect a tenant's understanding of which municipal ordinances govern the tenancy and the local legal protections available. However, Defendants have not identified any applicable city-specific ordinance that would alter the parties' rights or obligations, nor have they requested judicial notice of any such ordinance. Moreover, the documents accompanying the notice of termination, including the attached city permits,

		repeatedly identify the property's correct street address, thereby reducing any potential for confusion regarding the premises at issue. Accordingly, Defendants have not established that the alleged defects render the notice legally insufficient as a matter of law. The Motion for Judgment on the Pleadings is therefore DENIED. The Pretrial Conference of 7/31/2026 at 8:30 AM in Dept. C61 and Jury Trial of 8/3/2026 at 8:30 AM in Dept. C61 remain as calendared. Plaintiff and Defendants are admonished to comply with Local Rule 317 as indicated in the 7/6/2026 Minute Order (ROA 46) regarding Jury documents and the requirement to meet and confer prior to the pretrial date to create joint documents as required under Local Rule 317, or the parties will be subject to sanctions under Local Rule 381. The Court Clerk is to provide notice of the Court's ruling.
15	30-2026-01564533 Cooper Fellowship, Inc. vs. Bonner	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 22) and Declaration in Support (ROA 20). Under California Rules of Court, Rule 3.300(b) states "Whenever a party in a civil action knows or learns that the action or proceeding is related to another action or proceeding pending, dismissed, or disposed of by judgment in any state or federal court in California, the party must serve and file a Notice of Related Case." Neither party in this matter has complied with Rule 3.300 as to the related case which is referenced in Exhibit 4 and Exhibit 5 of the Motion for Summary Judgment regarding the ongoing litigation regarding the Cooper Fellowship Inc. (Case No. 30-2026-01545367-CU-CO-CJC). In the Defendant's Answer, the Defendant disputes the Plaintiff's authority to act on behalf of Cooper Fellowship Inc. The Court takes judicial notice that unlimited civil action in Case No. 30-2026-01545367-CU-CO-CJC is pending, which is litigating the lawful Board of Directors of Cooper Fellowship Inc., in which that Judicial Officer issued a preliminary injunction against Pal Lengyel-Leahu temporarily enjoining him from acting on behalf of Cooper Fellowship. As the matter is not fully litigated and there is no final order of the Court, the Court finds that there is a material issue in dispute as to whether the Plaintiff has legal standing to evict Ms. Bonner in this unlawful detainer action. Therefore, the Court DENIES the Plaintiff's Motion for Summary Judgment. The Court Clerk is to give notice of the Court's ruling.
16	30-2026-01577309 Yang vs. Byun	The Court has read and considered Defendant's Motion for Order Deeming Requests for Admissions, Set One, Admitted (ROA 13). IT IS ORDERED that the Defendant's Motion to Deem Requests for Admissions, Set One, Admitted is granted and that the truth of all specified matters, and the genuineness of all specified documents, in the First Set of Requests for Admission, propounded by Defendant and served on Plaintiff

		through counsel of record, W. Scott Ayers on June 21, 2026, be deemed admitted. The Court orders Plaintiff's Counsel and Plaintiff, Choun Yang, jointly and severally to pay monetary sanctions to Defendant, Minji Byun, in the amount of \$800. This sum shall be made payable to "Minji Byun" within 10 business days of service of this order and shall be delivered via mail to LK PROFESSIONAL LAW GROUP, 14730 Beach Blvd., Ste 106, La Mirada, CA 90638. If any party is required to further enforce the terms herein, the party enforcing this Judgment shall be entitled to further attorneys' fees and costs. The Court Orders Defendant to provide notice of the Court's ruling.
17	30-2026-01571601 Anaheim Multifamily LLC vs. Gutierrez	This matter is off calendar. The Motion to Dismiss was ruled on 7/2/2026 in ROA 34.